

Vikky v. State of U.P.

Allahabad High Court · Division Bench · 22 September 2014 · Criminal Misc. Writ Petition No. 16672 of 2014 · **Quash of s.138(d) FIR refused; compounding left to Code and s.152.**

HEADNOTE

The Allahabad High Court refused to quash an FIR under Section 138(d) of the Electricity Act, 2003 that disclosed a cognizable offence. Any arrest for an offence not entailing more than seven years must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Act.

FACTUAL SUMMARY

Vikky approached the Allahabad High Court to quash an FIR dated 25 August 2014, Case Crime No. 585 of 2014, registered under Section 138(d) of the Electricity Act, 2003 at Police Station Kosikalan, District Mathura. He had not been arrested. His counsel argued that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable. The State appeared through the Additional Government Advocate.

HOLDING-UNITS

HOLDING-UNIT · EA2003::138

quashing FIR for interference with meters or works

HOLDING

An FIR registered under Section 138(d) of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. If arrest is to be effectuated for an offence that will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC. ¶ 1

INTERPLAY · EA2003::152

compounding of electricity offences

HOLDING

If the alleged offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

The Allahabad High Court refused to quash an FIR under Section 138(d) of the Electricity Act, 2003 that disclosed a cognizable offence. Any arrest for an offence not entailing more than seven years must comply with Section 41(1)(b) read with Section 41-A CrPC.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 138(D) OFFENCE IS COMPOUNDABLE ON THE FACTS

The Court left compounding to the petitioner if the offence is compoundable, without deciding that it is. ¶ 1